



FINAL MASTER SCRIPT (IMPROVISED)-2.0

MOOT COURT EXERCISE

GROUP-A (CRIMINAL)

LL.B. VI-SEM / SESSION 2025-2026

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Simulated Case: State of U.P. v. Commander Deepak Mishra (2026)

Moot Starts: COURT MASTER (Priyank)

Silence In Court!

NARRATOR OPENING (Sidhant)

- *This Hon'ble Sessions Court of Moradabad is now in session.*
- *The matter before this Hon'ble Court is **State of U.P. v. Commander Deepak Mishra**.*
- *The accused is charged under **Section 103 of the Bharatiya Nyaya Sanhita, 2023**, for causing the death of **Mr. Vikram Singh** by firearm.*
- *The incident allegedly took place on **10th of January, 2026 at about 6:00 PM** at the residence of the deceased in Moradabad.*
- *It is alleged that after learning about his wife Kajal's illicit relationship with the deceased Mr. Vikram Singh, the accused Commander Deepak Mishra procured a revolver and shot the deceased.*
- *The prosecution alleges that this is a case of **intentional murder** whereas the defense claims that the incident occurred due to an **accident without any criminal intent**.*

...(Pause)...

The Prosecution & Defense may now introduce themselves to this Hon'ble Court.

PROSECUTION INTRODUCTION (Alshan)

May it please this Hon'ble Court, We appear for the State. I am Adv. Alshan Husain Shah and my Co-Counsel is Adv. Saba Khan.

DEFENCE INTRODUCTION (Sachchan)

May it please this Hon'ble Court, We appear on behalf of the accused. I am Adv. Sachhan Chauhan with my Co-Counsel Adv. Drashti Chaudhary.

NARRATOR (Sidhant)

The prosecution may begin their case.

PROSECUTION OPENING (Alshan)

Lordships! May it please this Hon'ble Court:

- That this is not a case of a sudden accidental reaction. This is indeed a case of deliberate action.
- Your Lordships! The prosecution will establish, that after being informed about his wife's illicit relationship with the deceased, the accused did not act out of a sudden. Instead, after confronting his wife, he went to his ship, he falsely procured a weapon your lordships, the firearm, prior to that he even gave a false justification to his superior at the naval headquarters that why he is procuring that weapon your lordships, after that he loaded it and then eventually he drove off all the way to the residence of the deceased in order to shoot him dead with that very revolver your lordships.
- Your Lordships! All these steps, all these events, they form a chain of preparation and they demonstrate a very deliberate intention.
- The law is very clear Your Lordships! For an act to be considered accidental under section 19 of the Bharatiya Nyaya Sanhita, 2023, there must be no time period for cooling-off. But the point here is to be noted Milord that the accused had an ample amount of time, for what? for reflection and even for the reconciliation of his thoughts.
- Your Lordships! Today, The prosecution shall prove, beyond any reasonable doubt, that the accused commander Deepak Mishra has committed a cold-blooded murder of the deceased Mr. Vikram Singh.

That's all your lordships. Much Obligated!

NARRATOR (Sidhant)

*Now, The Prosecution may proceed with its evidence and call its first witness **KAJAL MISHRA** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-1, Mrs. Kajal Mishra, to the witness box.

PW-1: KAJAL (Wife of Accused)

Chief By Prosecution (Saba): May I please proceed your lordships? Obligated.

Q1: Please state your name before this hon'ble court.

A: My name is Kajal.

Q2: Do you know the accused Commander Deepak Mishra?

A: Yes, he is my husband.

Q3: Did you disclose your relationship with the deceased Mr. Vikram Singh to your husband?

A: Yes. I did.

Q4: How did he react?

A: He was very upset about it.

Q5: Did he immediately leave to meet the deceased?

A: No. He did not leave immediately.

Q6: Do you know if he collected a revolver from his ship before meeting the deceased?

A: Yes, he took a revolver from his ship.

That's all your lordships! Much Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-1.

Cross by Defense (Drashti): May I please proceed your lordship? Obligated.

Q1: Mrs. Kajal, was your husband emotionally disturbed after hearing the truth?

A: Yes, he was deeply upset.

Q2: Would you say he was not in a stable mental state?

A: Yes.

Q3: Was he a devoted husband and father before this incident?

A: Yes. He was.

Q:4 Do you believe that as a spouse you broke his trust?

A: Yes. I did.

Q5: Did he ever show violent behaviour before this incident?

A: No. Never.

Q6: Did the deceased promise to marry you if you leave your husband?

A: He said that he loved me and wanted to be with me but he never clearly promised for marriage.

Your lordships! All these points confirms that the accused was emotionally disturbed and there was no history of violence. This clearly neglects preplanned murder. This is the mind of a disturbed individual. Much obliged!

NARRATOR (Sidhant)

*Now the Prosecution may call its second witness **INVESTIGATING OFFICER** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-2, INVESTIGATING OFFICER, to the witness box.

PW-2: INVESTIGATING OFFICER (Avinash)

Chief by Prosecution (Alshan): May I please proceed your lordships? Obligated.

Q1: Could you please state your name and designation to this hon'ble court.

A: My name is Sub-Inspector Avinash and I am the Investigating Officer in this case.

Q2: What exactly did you find at the crime scene?

A: At the crime scene it was found that the deceased had bullet injuries and the accused's revolver was recovered.

Q3: Could you please tell to this Hon'ble Court that when was the Postmortem of the deceased occurred?

A: The Postmortem of the deceased occurred on 11 January 2026.

Q4: What was the conclusion of the Postmortem report?

A: In the Postmortem report it was stated that the deceased died due to shock and haemorrhage resulting from firearm injuries to the chest, which caused severe damage to vital organs including the lungs and major blood vessels.

Q5: Was any sort of ballistic examination conducted?

A: Yes. It was conducted on 15 January 2026.

Q6: Could you please tell this hon'ble court what was the result of the ballistic examination?

A: In the examination, it was found that the bullets matched with the revolver of the accused.

Q7: Is this correct that the accused had surrendered himself voluntarily?

A: Yes, he surrendered himself in the police station on the night of 10 January 2026.

That's all your lordships. Much Obligated!

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-2.

Cross by Defense (Sachchan): May I please proceed your lordships? Obligated.

Q1: Could you please tell to the court that there were any eyewitnesses to the shooting?

A: No. Sir.

Q2: Did the accused attempt to flee?

A: No. He did not attempt to flee.

Q3: Is this correct to say that there was no one at the crime scene except the accused & the deceased?

A: Yes.

Q4: Have you found any other deadly weapon other than the revolver?

A: No

Q5: Did the accused cooperate with investigation?

A: Yes. He did.

Q6: Is this correct to say that you did not take the signature of Mrs. Kajal while recording her statement?

A: Yes, It is correct.

Point to be noted Milord, that the accused has cooperated but the police did not conduct the investigation properly. Much Obligated!

NARRATOR (Sidhant)

*Now the Prosecution may call its third witness **BALLISTIC EXPERT** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-3, **BALLISTIC EXPERT**, to the witness box.

PW-3: BALLISTIC EXPERT (Dr. Anjum Malik)

Chief by Prosecution (Saba): May I please proceed your lordship? Obligated.

Q1: Please state your name and profession.

A: My name is Dr. Anjum and I am a forensic ballistic expert.

Q2: Did you examine the revolver recovered in this case?

A: Yes. I did.

Q3: What did your examination reveal?

A: The bullets recovered from the body of the deceased were fired from that revolver.

Q4: Was the revolver in working condition?

A: Yes. It was.

Q5: In your expert opinion, could the revolver cause fatal injury if fired?

A: Yes.

That's all your lordships! Obligated!

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-3.

Cross by Defence (Drashti): May I please proceed your lordship? Obligated.

Q1: Dr. Anjum, you were not present at the scene of the incident, correct?

A: Yes.

Q2: Your opinion is based only on laboratory examination?

A: Yes.

Q3: You cannot say exactly how the weapon was fired, can you?

A: No.

Q4: You cannot say whether the firing was intentional or accidental?

A: No.

Your lordships! From all these points, the expert cannot say how the weapon was fired. We all agree that in this present case the weapon was used, even by the accused but your lordships here we are fighting about intention and the most scientific witness of prosecution fails to prove intention. Much obliged!

NARRATOR (Sidhant)

Now the prosecution may call its fourth witness MAMTA SINGH for Chief Examination.

COURT MASTER (Priyank)

May it please the Court, the prosecution calls PW-4, Ms. MAMTA SINGH, to the witness box.

PW-4: MAMTA (Sister Of Deceased)

Chief by Prosecution (Alshan): May I please proceed your lordship? Obligated.

Q1: Please state your name before this Hon'ble Court.

A: My name is Mamta Singh.

Q2: What was your relation with the deceased Vikram Singh?

A: He was my brother.

Q3: Were you present at the house of the deceased on 10th of January 2026?

A: Yes.

Q4: Do you know that accused Deepak Mishra arrived at your brother's house that evening?

A: Yes, I know.

Q5: Could you please tell to this Hon'ble Court that what did you observe in the house after the arrival of Commander Deepak Mishra?

A: I heard that there was an argument between my brother and the accused and after that I heard a few gunshots.

That's all your lordships! Much Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-4.

Cross by Defence (Sachchan): May I please proceed your lordship? Obligated.

Q1: Is this correct that you did not actually see the moment when the gun was fired?

A: Yes, I did not see the exact moment.

Q2: You were not inside the same room where the incident happened?

A: No. I was not there.

Q3: Therefore, you cannot say how exactly the revolver was fired?

A: No, I cannot say that.

Q4: You also cannot say whether the firing was accidental or intentional, correct?

A: Yes.

Q5: Your testimony is mainly based on what you heard and not what you directly saw?

A: Yes.

Point to be noted Milord, that the testimony of Ms. Mamta Singh is only based on what she heard. Much Obligated!

NARRATOR (Sidhant)

*Now the prosecution may call its fifth witness **Mr. ABHISHEK** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the prosecution calls PW-5, Mr. ABHISHEK, to the witness box.

PW-5: ABHISHEK (Housekeeper)

Chief by Prosecution (Saba): May I please proceed your lordships? Obligated.

Q1: Please state your name and occupation before this Hon'ble Court.

A: My name is Abhishek and I worked as the housekeeper at Vikram Singh's residence.

Q2: Were you present at the house on the day of the incident?

A: Yes, I was present.

Q3: Did you see the accused Deepak Mishra coming to the house that evening?

A: Yes, I saw him entering the house.

Q4: Did you hear any conversation or argument between the accused and the deceased?

A: Yes, I heard them arguing loudly.

Q5: What happened shortly after that argument?

A: I heard a few loud gunshots from inside the bedroom of Mr. Vikram Singh.

That's all your lordships! Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-5

Cross by Defence (Drashti): May I please proceed your lordships? Obligated.

Q1: You were not present inside the room where the shooting took place, correct?

A: Yes. That is correct.

Q2: Therefore, you did not actually see the gun being fired?

A: No. I did not see that.

Q3: You only heard the sound of the gunshots?

A: Yes.

Q4: You cannot say exactly what happened between the accused and the deceased inside the room, can you?

A: No. I cannot say that.

Q5: You also cannot say whether the firing was accidental or deliberate, correct?

A: Yes. That is correct.

Q6: Could you please tell to this court that what was the reaction of the accused after you heard the gunshots?

A: He was in a state of shock.

It is most respectfully submitted your lordships! This point deserves special attention that the state of shock reflects the absence of intent, not presence of guilt. Much obliged.

NARRATOR (Sidhant)

*Now the Prosecution may call its sixth witness **MEDICAL EXPERT** for Chief Examination*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-6, MEDICAL EXPERT, to the witness box.

PW-6: MEDICAL EXPERT (Dr. Deepika Prajapati)

Chief by Prosecution (Alshan): May I please proceed your lordships? Obligated.

Q1: Please state your name and your designation to this Hon'ble Court.

A: My name is Dr. Deepika Prajapati. I am a Senior Surgeon at District Hospital, Moradabad.

Q2: Did you examine the body of the deceased Mr. Vikram Singh?

A: Yes, I examined the body of deceased Mr. Vikram Singh during the postmortem conducted on 11 January 2026.

Q3: What injuries did you find on the body of the deceased?

A: I found firearm entry wounds on the chest region and corresponding exit wounds on the back. The injuries had caused severe damage to the vital organs.

Q4: Could you please tell to this Hon'ble Court that what was the cause of death as per the postmortem report?

A: The cause of death was shock and haemorrhage due to firearm injuries to the chest, which in my opinion was sufficient in the ordinary course of nature to cause death.

That's all your lordships! Much Obligated!

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-6.

Cross by Defence (Sachchan): May I please proceed your lordships? Obligated.

Q1: Doctor, you were not present at the time of the incident, correct?

A: Yes, I was not present at the time of the incident.

Q2: You cannot say with certainty how exactly the firing took place, correct?

A: Yes, I can only give my medical opinion based on the injuries.

Q3: Is it possible that a firearm could discharge accidentally during a physical struggle?

A: Yes, it is possible in certain circumstances.

Q4: You cannot conclusively state that the firing was intentional, correct?

A: Yes, intention cannot be determined solely from the medical examination.

Your Lordships, from Dr. Deepika's statement it is clear that the incident was accidental and not intentional, Much Obligated!

NARRATOR (Sidhant)

With this, the Prosecution concludes the examination of its witnesses and closes its evidence before this Hon'ble Court.

...(Pause)...

*Now, The Defence may proceed with its evidence and call its witness **COMMANDER SHAURYA** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the defense calls DW, **COMMANDER SHAURYA**, to the witness box.

DW-1: COMMANDER SHAURYA (Friend of Accused)

Chief by Defence (Sachchan): May I please proceed your lordships? Obligated.

Q1: Please state your name and profession before this Hon'ble Court.

A: My name is Commander Shaurya and I serve in the Indian Navy.

Q2: Do you know the accused Deepak Mishra?

A: Yes, he is my colleague and close friend.

Q3: Did the accused ever discuss his personal problems with you regarding his wife's relationship with the deceased?

A: Yes, he told me he was deeply disturbed, shocked and stressed after learning about it.

Q4: Did he tell you about his intentions before meeting the deceased?

A: Yes, he told me that he wanted to talk to the deceased about the future of his family and that he was even thinking about committing suicide.

Point to be noted Milord, that when a person intentionally commits murder, he is not disturbed, rather he remains calm and a reaction of shock occurs only when a mistake happens. Obligated!

NARRATOR (Sidhant)

The Prosecution is now permitted to cross-examine DW-1

Cross by Prosecution (Alshan): May I please proceed your lordships? Obligated.

Q1: Is this correct that you were not present at the scene of the incident?

A: Yes. That is correct.

Q2: Whatever you know about the incident is only based on what the accused told you earlier?

A: Yes.

Q3: Is this correct that you cannot say what actually happened at the house of the deceased that evening?

A: Yes. Correct.

Q4: Therefore, your testimony is only about the accused's mental state before the incident, correct?

A: Yes. That's correct.

Point to be noted Milord, that the testimony of Commander Shaurya Saxena is only based on what the accused had told him earlier and not what he saw, heard or observed at the crime scene. Much Obligated!

NARRATOR (Sidhant)

With this, the Defense concludes the examination of its witness and closes its evidence before this Hon'ble Court.

...(Pause)...

Now, The Court proceeds to record the statement of the accused Commander Deepak Mishra under Section 351 of the of the Bharatiya Nagarik Suraksha Sanhita, 2023.

ACCUSED STATEMENT (Deepak)

- Milord, I had no intention to kill Vikram Singh.
- I was emotionally shattered after learning about my wife's relationship with him. I went to his house only to ask him about the future of my wife and my children.
- During the conversation, an argument started between us. The situation became tense and we both lost control of our emotions.
- During the scuffle, the revolver fell to the ground and both of us rushed towards it and in the course of a sudden fight, the weapon was **accidentally fired**.
- I deeply regret the unfortunate death of Vikram Singh, but I never intended to kill him.

NARRATOR (Sidhant)

Both parties may now proceed to conclude their final arguments before this Hon'ble Court

...PROSECUTION FINAL ARGUMENT IS ON NEXT PAGE...

PROSECUTION FINAL ARGUMENT (Alshan)

Your Lordships!

- The defence is somehow attempting to justify a very deliberate act into an accidental reaction.
- But the evidence tells a very different story your lordships. The matter of fact that the accused had a lot of time for reflection and reconciliation of his thoughts is to be noted Milord. **Firstly**, He procures a weapon. **Secondly**, He loads it. **Thirdly**, He drove all the way off to the residence of the deceased and confronts him. **And eventually** he SHOT HIM DEAD with that very revolver your lordships!
- Your Lordships! By No stretch of imagination, one prudent man could even conclude that all of these instances would have been triggered accidentally without any criminal intent. Indeed, all these acts were very much deliberate, calculated and intentional.
- Your Lordships! The counsel would also like to draw the kind attention of this Hon'ble Court towards the fact that this present case clearly satisfies all the essential ingredients of murder under section 103 of The Bharatiya Nyaya Sanhita, 2023. **Firstly**, there was a clear intention to cause death. **Secondly**, there was an attempt to cause such bodily injury as was likely to cause death. **Thirdly**, the act was done with the knowledge that it was so imminently dangerous that it would, in all probabilities, cause death with no exemptions to it. **And lastly** and most importantly, the general exception of accident under section 19 of the Bharatiya Nyaya Sanhita, 2023, does not even stand a chance to be applied here in any way possible Your Lordships!
- Indeed, the defence of accident is nothing but a mere afterthought which is unsupported by evidence and it clearly contradicts the facts of this case on record!
- And with that our lordships, The prosecution today humbly prays for the conviction of the accused Commander Deepak Mishra under Section 103 of The Bharatiya Nyaya Sanhita, 2023 for committing a very heinous and brutal murder of Mr. Vikram Singh at his residence.

That's all from my side your Lordships. Much Obligated!

...DEFENCE FINAL ARGUMENT IS ON NEXT PAGE...

DEFENCE FINAL ARGUMENT (Sachchan)

Your Lordships!

- Your lordships! According to prosecution, commander Deepak Mishra has committed a cold-blooded murder but my client Deepak Mishra is a decorated naval officer with a clean service record and discipline and he is a trained officer so why he fires multiple shots at a close range?
- Your lordships, in this case everyone has said what the commander said, what words he used and what state of mind he was in. But no one knows what happened in Vikram Singh's bedroom. The truth is hidden between the four walls of Vikram Singh's bedroom and there is only one person in this court who exactly knows what happened and that is Commander Deepak Mishra.
- Your lordships, According to Commander Deepak Mishra and our relevant facts, the accused had only gone to question the deceased regarding the future of his wife and children.
- But the deceased failed to provide a satisfactory response which resulted in an argument. The argument unexpectedly escalated into a physical scuffle and during the struggle, the revolver fell to the ground. Both individuals rushed towards it and in the course of sudden fight the weapon accidentally fired.
- Your lordships, the accused did not flee, he voluntarily surrendered and reported the matter himself.
- Your lordships, from all the above facts, it can be concluded that the incident was triggered by a sudden confession of infidelity by his wife. There was no prior enmity, no planning, no conspiracy.
- Your lordships, mens rea for murder requires deliberate intention that forms before the act, which is completely absent here and this incident was not intentional, it was accidental.
- Therefore, the defence today humbly prays for the acquittal of the accused before this Hon'ble court in the best interest of justice.

That's all Your Lordships. Much Obligated!

... FURTHER NARRATION IS ON NEXT PAGE...

NARRATOR (Sidhant)

- *After carefully considering the evidence placed before this Hon'ble Court, the testimonies of the witnesses and the arguments advanced by the learned counsels for both sides, the Court proceeds to determine the guilt of the accused.*
- *The defence has attempted to establish that the incident was accidental in nature under Section 19 of the Bharatiya Nyaya Sanhita, 2023.*
- *However, upon examining the sequence of events, the conduct of the accused, and the surrounding circumstances, it is evident that the defence has failed to prove that the incident was accidental. Indeed, The act of procuring the weapon, travelling to the residence of the deceased and the manner in which the incident occurred clearly reflects intention and preparation.*
- *With that, The prosecution has established that the accused, Commander Deepak Mishra, after learning about the relationship between his wife and the deceased Vikram Singh, deliberately procured a revolver, travelled to the residence of the deceased and fired the weapon which resulted in the death of Vikram Singh.*
- *Accordingly, this Hon'ble Court finds that the prosecution has successfully proved the guilt of the accused beyond any reasonable doubt.*
- *Therefore, The accused Deepak Mishra is hereby **convicted for the offence of murder** under Section 103 of the Bharatiya Nyaya Sanhita, 2023.*

...(Pause)...

- ***The matter is now posted for hearing on the question of sentence.***
 - ***Both the parties may now conclude their sentencing arguments before this Hon'ble Court.***
-

... BOTH SENTENCING ARGUMENTS ARE ON NEXT PAGE...

PROSECUTION SENTENCING ARGUMENT (Saba)

May it please Your Lordships,

- Now that the guilt of the accused is clearly proved, the prosecution submits that this case deserves the strictest punishment.
- Your Lordships, this is not a sudden act. The accused planned the crime, procured a revolver and went to the victim's house. This clearly reflects intention and preparation.
- The crime was committed inside the victim's own bedroom, which makes the offence even more grave and serious.
- As held in *Bachan Singh v. State of Punjab*, in the rarest of rare cases, courts must award the highest punishment. The present case falls within that category.
- Your Lordships, no personal reason can justify taking someone's life. If such acts are taken lightly, it will weaken the rule of law.
- Therefore, the prosecution humbly prays that this Hon'ble Court may be pleased to award the maximum punishment to the accused, in the best interest of justice.

That is all Your Lordships. Much Obligated!

DEFENCE SENTENCING ARGUMENT (Drashti)

Your Lordships!

- It is very clear that Laws are made to serve Justice, not to just Punish.
- If every act arising out of emotional collapse is treated under the rarest of rare doctrines.
- Then the very purpose of legal exceptions (1) and (4) of Section 101 of BNS will stand defeated.
- Exception (1) and (4) to section 101 of BNS, 2023 recognize that a person provoked by grave and sudden provocation (exception 1) or acting under a temporary loss of self-control during a sudden fight (exception 4) is not entirely liable for his actions.
- Your Lordship, this case falls squarely within these exceptions and the prosecution reliance on Section 103 of BNS is misplaced, as the facts of the case points to a sudden quarrel and provocation by Vikram Singh's words, as the accused merely intended to question him regarding the future of his wife and children.
- It is very clear, your Lordship that the commander's action, though tragic, were a momentary lapse and not a premeditated act.
- Your Lordship, the accused does not seek sympathy, he seeks understanding.
- Not acquittal, but fairness. To punish him as a murderer it would be legally incorrect.
- To sentence him to death would be morally unjust.
- This is not the rarest of rare, this is the most human of cases.
- We humbly request this Hon'ble court to consider these exceptions and section 105 of BNS, 2023 Which deals with culpable homicide not amounting to murder.
- Your Lordship, a conviction under section 105 would be more appropriate, given the circumstances.

That's all Your Lordships. Much Obligated!

NARRATOR CLOSING (Sidhant)

- *This Hon'ble Sessions Court of Moradabad has heard the submissions of both the prosecution and the defence on the question of sentence.*
- *Considering the gravity of the offence, the circumstances of the case and the arguments advanced by both sides, this Hon'ble Court deems it appropriate to reserve its judgement on the question of sentence.*

Moot Ends: COURT MASTER (Priyank)**The Court Is Now Adjourned!**

This Moot Court Script was researched, drafted and prepared by Alshan Husain Shah.

Prepared for K.G.K. Moot Court Group-A (LL.B. VI-Semester).

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